

PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement ("Agreement") is entered into as of January 1, 2025, by and between:

Siemens Technology Solutions GmbH, a corporation organized and existing under the laws of Germany, with its principal place of business at Werner-von-Siemens-Straße 1, 80333 Munich, Germany ("Service Provider" or "Company"),

AND

Apex Innovations Pvt. Ltd., a corporation organized and existing under the laws of India, with its principal place of business at 42 Bandra Kurla Complex, Mumbai, Maharashtra 400051, India ("Client").

RECITALS

WHEREAS, the Service Provider desires to provide certain professional technology consulting services to the Client; and WHEREAS, the Client desires to retain the Service Provider to perform such services under the terms and conditions set forth in this Agreement; NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1 — SCOPE OF SERVICES

1.1 Services. The Service Provider agrees to provide the Client with professional technology consulting services, including but not limited to software architecture design, system integration, artificial intelligence implementation, cloud infrastructure management, and cybersecurity advisory services (collectively, the "Services"), as more particularly described in Schedule A attached hereto and incorporated herein by reference.

1.2 Performance Standard. The Service Provider shall perform the Services in a professional and workmanlike manner, consistent with industry standards and best practices applicable to the type of services being performed. The Service Provider shall dedicate adequate resources and qualified personnel to ensure timely and satisfactory completion of all deliverables.

1.3 Change Orders. Any changes to the scope of Services must be agreed upon in writing by both parties prior to implementation. The Service Provider shall submit a written change order request detailing the proposed changes, associated costs, and revised timelines. No change order shall be effective unless signed by authorized representatives of both parties.

1.4 Subcontracting. The Service Provider shall not subcontract any

portion of the Services without the prior written consent of the Client, which consent shall not be unreasonably withheld. Any approved subcontractor shall be bound by the same obligations as the Service Provider under this Agreement.

ARTICLE 2 — TERM AND TERMINATION

2.1 Term. This Agreement shall commence on January 1, 2025, and shall continue in full force and effect until December 31, 2026 (the "Initial Term"), unless earlier terminated in accordance with the provisions of this Agreement.

2.2 Renewal. Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one-year periods (each a "Renewal Term") unless either party provides written notice of its intent not to renew at least ninety (90) days prior to the end of the then-current term.

2.3 Termination for Convenience. Either party may terminate this Agreement for convenience upon sixty (60) days prior written notice to the other party. In the event of termination for convenience by the Client, the Client shall pay the Service Provider for all Services satisfactorily performed up to the date of termination, plus any reasonable and documented wind-down costs incurred by the Service Provider.

2.4 Termination for Cause. Either party may terminate this Agreement immediately upon written notice of termination if the other party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days after receiving written notice specifying the nature of the breach in reasonable detail.

2.5 Effect of Termination. Upon expiration or termination of this Agreement for any reason, the Service Provider shall promptly deliver to the Client all work product, documents, data, and materials prepared or obtained in connection with the Services. All provisions of this Agreement that by their nature should survive termination shall survive, including without limitation confidentiality obligations, intellectual property provisions, limitation of liability, and governing law.

ARTICLE 3 — PAYMENT TERMS AND COMPENSATION

3.1 Fees. In consideration for the Services, the Client shall pay the Service Provider a monthly retainer fee of EUR 45,000 (forty-five thousand Euros), payable in advance on the first business day of each calendar month during the term of this Agreement.

3.2 Invoicing. The Service Provider shall issue invoices to the Client on a monthly basis. Each invoice shall include a detailed description of the Services performed, the period covered, and any additional expenses incurred. All invoices shall be submitted electronically to

the Client's designated billing contact.

3.3 Payment Due Date. All invoices are due and payable within thirty (30) days of the invoice date ("Due Date"). Payments not received by the Due Date shall accrue interest at the rate of 1.5% per month (or the maximum rate permitted by applicable law, whichever is less) from the Due Date until the date of actual payment.

3.4 Expenses. The Client shall reimburse the Service Provider for all reasonable and documented out-of-pocket expenses incurred in connection with the performance of the Services, including travel, accommodation, and materials, provided that such expenses are pre-approved in writing by the Client and supported by appropriate receipts or documentation.

3.5 Taxes. Each party shall be responsible for its own taxes arising from this Agreement. The Client shall be responsible for any applicable withholding taxes and shall provide the Service Provider with appropriate tax certificates or documentation as required by law.

3.6 Disputed Invoices. If the Client disputes any portion of an invoice in good faith, the Client shall notify the Service Provider in writing within ten (10) business days of receipt of the invoice, specifying the disputed amount and the basis for the dispute. The parties shall negotiate in good faith to resolve any billing disputes within fifteen (15) business days of such notification.

ARTICLE 4 — CONFIDENTIALITY AND NON-DISCLOSURE

4.1 Confidential Information. Each party (as a "Receiving Party") acknowledges that it may receive or have access to information of the other party (the "Disclosing Party") that is proprietary, confidential, or a trade secret, including but not limited to technical data, business plans, financial information, customer lists, software, algorithms, product designs, and marketing strategies ("Confidential Information").

4.2 Non-Disclosure Obligations. The Receiving Party agrees to:

- (a) hold all Confidential Information in strict confidence;
- (b) not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party;
- (c) use the Confidential Information solely for the purpose of performing its obligations or exercising its rights under this Agreement; and (d) protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

4.3 Exceptions. The confidentiality obligations set forth in this

- Article shall not apply to information that: (a) is or becomes publicly available through no fault of the Receiving Party;
- (b) was rightfully known to the Receiving Party prior to disclosure;
 - (c) is rightfully received from a third party without restriction;
 - or (d) is independently developed by the Receiving Party without

use of the Confidential Information.

4.4 Duration of Confidentiality. The obligations of confidentiality under this Agreement shall remain in effect during the term of this Agreement and for a period of five (5) years following the expiration or termination of this Agreement.

4.5 Return of Information. Upon termination of this Agreement or upon request by the Disclosing Party, the Receiving Party shall promptly return or destroy all Confidential Information and any copies thereof, and shall certify in writing that it has done so.

ARTICLE 5 — INTELLECTUAL PROPERTY

5.1 Ownership of Deliverables. All work product, inventions, developments, improvements, software, documentation, and other materials created by the Service Provider specifically for the Client under this Agreement ("Deliverables") shall be considered works made for hire and shall be the exclusive property of the Client upon full payment of all fees due hereunder.

5.2 License to Pre-Existing IP. The Service Provider retains all rights to its pre-existing intellectual property, tools, frameworks, methodologies, and know-how ("Background IP"). The Service Provider hereby grants the Client a non-exclusive, royalty-free, perpetual

license to use any Background IP incorporated into the Deliverables solely to the extent necessary for the Client to use and enjoy the Deliverables.

5.3 Patent and Copyright. The Client shall have the right to file patent applications and copyright registrations for the Deliverables in any jurisdiction. The Service Provider agrees to execute all documents and take all actions reasonably necessary to assist the Client in securing and maintaining such intellectual property rights.

5.4 Non-Compete. During the term of this Agreement and for a period of twelve (12) months following its termination, the Service Provider agrees not to engage in any competitive activity that directly competes with the Client's core business operations in the markets where the Client operates, without the prior written consent of the Client.

ARTICLE 6 — LIABILITY AND INDEMNIFICATION

6.1 Limitation of Liability. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE TOTAL CUMULATIVE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY THE CLIENT TO THE SERVICE PROVIDER IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM.

6.2 Indemnification by Service Provider. The Service Provider shall indemnify, defend, and hold harmless the Client and its officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from: (a) the Service Provider's breach of this Agreement; (b) the negligence or willful misconduct of the Service Provider; or (c) any infringement of third-party intellectual property rights by the Deliverables.

6.3 Indemnification by Client. The Client shall indemnify, defend, and hold harmless the Service Provider and its officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from: (a) the Client's breach of this Agreement; or (b) the negligence or willful misconduct of the Client.

ARTICLE 7 — GOVERNING LAW AND DISPUTE RESOLUTION

7.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict of law principles.

7.2 Dispute Resolution. In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, the parties shall first attempt

to resolve such dispute through good faith negotiation between senior representatives of the parties for a period of thirty (30) days.

7.3 Arbitration. If the dispute cannot be resolved through negotiation, it shall be finally settled by binding arbitration under the Rules of the International Chamber of Commerce (ICC). The arbitration shall be conducted in London, England, in the English language, before a panel of three (3) arbitrators. The decision of the arbitrators shall be final and binding upon the parties.

7.4 Jurisdiction. Notwithstanding the foregoing, either party may seek injunctive or other equitable relief from any court of competent jurisdiction to prevent irreparable harm pending the outcome of arbitration proceedings.

ARTICLE 8 — FORCE MAJEURE

8.1 Force Majeure Events. Neither party shall be liable for any failure or delay in performance under this Agreement to the extent such failure or delay is caused by circumstances beyond such party's reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, civil unrest, government actions, pandemics, epidemics, labor disputes, or failures of third-party infrastructure providers ("Force Majeure Event").

8.2 Notice Requirement. The party affected by a Force Majeure Event

shall provide written notice to the other party as soon as reasonably practicable, describing the nature of the Force Majeure Event, its expected duration, and the steps being taken to mitigate its effects.

8.3 Extended Force Majeure. If a Force Majeure Event continues for more than ninety (90) consecutive days, either party may terminate this Agreement upon written notice, without liability to the other party, except for payment obligations for Services already rendered.

ARTICLE 9 — GENERAL PROVISIONS

9.1 Entire Agreement. This Agreement, together with all Schedules attached hereto, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written.

9.2 Amendments. This Agreement may not be amended or modified except by a written instrument signed by authorized representatives of both parties.

9.3 Waiver. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by the waiving party. No waiver shall be deemed a continuing waiver or a waiver of any other provision.

9.4 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to make it enforceable.

9.5 Notices. All notices under this Agreement shall be in writing and delivered by email with confirmation of receipt, overnight courier, or certified mail to the addresses set forth in the preamble of this Agreement.

9.6 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding.

IN WITNESS WHEREOF, the parties have executed this Professional Services Agreement as of the date first written above.

SIEMENS TECHNOLOGY SOLUTIONS GmbH APEX INNOVATIONS PVT. LTD.

By: _____ By: _____

Name: Roland Fischer

Name: Priya Sharma

Title: Chief Executive Officer

Title: Managing Director

Date: January 1, 2025

Date: January 1, 2025

SCHEDULE A — DESCRIPTION OF SERVICES

1. Software Architecture Design & Review
2. AI/ML Model Development and Integration
3. Cloud Infrastructure Setup (AWS/Azure)
4. Cybersecurity Audit and Advisory
5. Monthly Progress Reports and Documentation
6. On-site Consulting (up to 5 days per quarter)
7. 24/7 Emergency Technical Support (Severity 1 issues)
8. Staff Training and Knowledge Transfer Sessions